

Nisha Rajpurohit vs Shailendra Kumar (2023:RJ-Jd:30006) on 15 September, 2023

Author: Madan Gopal Vyas

Bench: Madan Gopal Vyas

[2023:RJ-JD:30006]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR
S.B. Civil Transfer Appl. No. 2/2023

Nisha Rajpurohit W/o Shailendra Kumar, Aged About 32 Years,
D/o Narsingh Rajpurohit, Resident Of Gali No. 04, Hanuman
Hatha, Bikaner, Bikaner (Raj.)

----Petitioner

Versus

Shailendra Kumar S/o Rajendra Singh Rajpurohit, Resident Of In
Front Of Boarder Home Gaurad, Indra Nagar, Barmer.

----Respondent

For Petitioner(s) : Mr. Virendra Acharaya
For Respondent(s) : Mr. NS Rajpurohit

HON'BLE MR. JUSTICE MADAN GOPAL VYAS

Judgment 15/09/2023 The present transfer petition under Section 24 of CPC has been preferred by the petitioner-wife for transferring the case No. 217/2022 preferred by the respondent herein under Section 9 of the Hindu Marriage Act 1955, from the court of Addl. District Judge No.1, Barmer to Family Court, Bikaner.

2. Learned counsel for the petitioner submits that the application under Section 13(1) of the Hindu Marriage Act preferred by the petitioner is pending before the Family Court, Bikaner. Thus it is prayed that application under Section 9 of Hindu Marriage Act may also be transferred to Family Court, Bikaner

3. Learned counsel appearing for respondent opposed the prayer made by the learned counsel for the petitioner. It is submitted that the petitioner is a government teacher and is discharging her duties at Government Secondary School, [2023:RJ-JD:30006] (2 of 3) [CTA-2/2023] Solankiyon Ki Dhani, Mahabar, Tehsil and District Barmer and therefore, the application under Section 9 of the Hindu Marriage Act may not be transferred from Barmer to Bikaner as at present she is residing at Barmer.

4. In rejoinder, learned counsel appearing for the petitioner submits that though the petitioner is now transferred to Barmer but she is having threat perception at Barmer. It is submitted that an application under Section 13(1) of the Hindu Marriage Act is pending consideration at Bikaner, therefore, the application under Section 9 of the Hindu Marriage Act too may be transferred to Bikaner.

5. The Hon'ble Supreme Court in the case of Vinisha Jitesh Tolani @ Manmeet Laghmani vs Jitesh Kishore Tolani 2010(1) WLC (SC) 705 has observed that in the matrimonial proceedings initiated by the husband against the wife the convenience of the wife has to be considered for contesting the suit, and accordingly the matrimonial proceedings ought to be transferred where the wife is residing.

6. Having regard to the facts and circumstances of the case, this Court deems it appropriate to transfer the petition under Section 9 of the Hindu Marriage Act from the court of Adl. District Judge No.1, Barmer to the Family Court, Bikaner.

6. The transfer petition is allowed accordingly.

7. It is ordered that the Civil case No.217/2022 under Section 9 of the Hindu Marriage Act 1955, pending before the court of Addl. District Judge No.1, Barmer be transferred to the Family Court, Bikaner.

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8. The learned Addl. District Judge No.1, Barmer is directed to send the record of the case to Family Court, Bikaner.

9. Both the parties are directed to appear before Family Court, Bikaner on 9.10.2023.

10. Learned Family Court, Bikaner is directed to expedite the trial of the case.

(MADAN GOPAL VYAS),J 108-CPGoyal/-

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